

Akriti Food Industry LLP v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 October 2025 · WRIT - C No. 33604 of 2025 · **Impugned order set aside; fresh order after Clause 5.6(e).**

HEADNOTE

Where a consumer disputes bill correctness, Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 requires a check meter parallel to the main meter and the bill to be made from check-meter consumption, with readings recorded 7–15 days after installation. An order deciding the dispute before that period expires cannot stand.

FACTUAL SUMMARY

Akriti Food Industry LLP challenged the Executive Engineer's order dated 12.08.2025 deciding its representation on an alleged incorrect bill of Rs.22,28,225/- for June 2023 to July 2025. A prior writ (Writ-C No. 24727 of 2025) had remitted the grievance to the authority. The petitioner contended that Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 had not been followed. A check meter was installed on 08.08.2025; the impugned order followed on 12.08.2025. The licensee said the check meter showed no defect in the main meter.

REUSABLE CONSTRUCTIONS

1. Where a consumer disputes bill correctness, Clause 5.6(e) requires a check meter parallel to the main meter and the bill to be made from check-meter consumption, with readings recorded 7–15 days after installation; that clock is mandatory. ¶ 7-9
2. An order deciding a disputed-bill representation before the Clause 5.6(e) 7–15 day check-meter period expires cannot stand. ¶ 7-9

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(e)

disputed bill; check meter

HOLDING

Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 requires that, where the consumer disputes the correctness of a bill, a check meter be installed parallel to the main meter and the bill be made as per energy consumption reflected in the check meter, with check-meter readings recorded 7–15 days after installation. The check meter here was installed on 08.08.2025 and the impugned order was passed on 12.08.2025, before that period expired. The order dated 12.08.2025 was set aside, with liberty to the Executive Engineer to pass a fresh order after following Clause 5.6(e) within one month. ¶ 7-9

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE MAIN METER WAS DEFECTIVE OR THE ARREARS OF RS.22,28,225/- WERE CORRECTLY COMPUTED

The licensee contended the check meter showed no defect; the Court did not decide meter condition or quantum, and directed a fresh order after Clause 5.6(e). ¶ 6,9

